Rakhee Chopra @ Kiran Chopra vs State (Nct Of Delhi) on 17 May, 2023

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1632/2023
   RAKHEE CHOPRA @ KIRAN CHOPRA .....
   Through: Mr. Nishant Nain, Ms. C
   Advs.
   versus
   STATE (NCT OF DELHI) .....
   Through: Mr. Utkarsh, APP with I
   Kumar, SI Gautam Sagar
   CORAM:
   HON'BLE MR. JUSTICE JASMEET SINGH
   OR

% 17.05.2023 Exemption allowed, subject to all just exceptions. Application stands disposed of.

CRL.M.(BAIL) 689/2023 This is an application seeking bail in FIR No. 158/2013 dated 25.04.2013 registered at PS KN Katju Marg u/s 420/467/468/471/120B IPC.

It is stated by Mr. Nain and Ms. Sharma, learned counsels for the applicant that in the present case, the applicant has never been served with the notice u/s 82 Cr.P.C or with the NBWs. Despite the same, the applicant has been declared as a proclaimed offender.

When the applicant filed an application for grant of bail, the learned Sessions Court was of the view that the applicant has been absconding and without going into the merits, only for the said reasons, was pleased to dismiss the application for grant of bail.

The learned counsels state that in the present case, the petitioner herself is a victim of fraud. The petitioner along with her husband purchased This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 11:17:14 first and second floor of property bearing No. 76, Pocket F-1, Sector 16, Rohini. The loan was taken from Oriental Bank of Commerce. Subsequently, it transpired that the documents of title in favour of the applicant and her husband were forged.

It is stated by learned counsels that they have only taken the loan for purchase of the property and the beneficiary of the loan was one Ms. Kavita Arora. She has received the entire amount of Rs. 19.5

lakhs and she is also an accused in the FIR. She has already been granted bail. In addition, the husband of the applicant has also been granted bail.

It is further stated that the applicant could not apply for the bail as she was not informed regarding the pendency of the proceedings.

In the present case, I am of the view that the applicant is a 45 year old lady. Prima facie she has not received the loan amount. The loan amount has been received by one Ms. Kavita Arora, who has already been granted bail. In addition, husband of the applicant has also been granted bail. Chargesheet has already been filed. Charges have been framed. No custodial interrogation of the applicant is required. In addition, all the evidence is in the form of documents and the apprehension of the applicant influencing any of the witnesses is also not made out.

For the said reasons, I am inclined to allow the application and the applicant is directed to be released on bail, subject to following terms and conditions:

> i. The applicant shall furnish a personal bond and a surety bond in the sum of Rs. 10,000/- each, to the satisfaction of the Trial Court; ii. The applicant shall appear before the Court as and when the matter is taken up for hearing;
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> This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 11:17:14 iii. The applicant shall join investigation as and when called by the I.O concerned;
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> iv. The applicant shall provide her mobile number to the Investigating Officer (IO) concerned, which shall be kept in working condition at all times. The applicant shall not switch off, or change the same without prior intimation to the IO concerned, during the period of bail;
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> v. The applicant shall share her live location through Google Pin location to the I.O. concerned;
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> vi. In case the applicant changes her address, she will inform the IO concerned and this Court also;
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> vii. The applicant shall not leave the country during the bail period and surrender her passport, if any, at the time of release before the I.O. concerned;
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> viii. The applicant shall not indulge in any criminal activity during the bail period;

ix. The applicant/agent/relative/member of the applicant shall not communicate with, or come into contact with any of the prosecution witnesses, or tamper with the evidence of the case. The application stands disposed of in the aforesaid terms.

JASMEET SINGH, J MAY 17, 2023/DM Click here to check corrigendum, if any This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 11:17:15